ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	130th Commission Meeting
DATE:	31 May 2023 and 01 & 02 June 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	**Present draft security protocols on search/seizure/detention/arrest/escort – Security Officer, DoI & LD** *The Security Officer and the team from the Department of Investigation presented the draft security protocols on search/seizure/detention/arrest/escort to the Commission. The protocol was developed after a thorough assessment of existing security measures to mitigate security threats and more importantly to institutionalize security measures in search, seizure, detention, arrest and escort of the clients when the Security Unit is fully operationalized without requiring much assistance from the Royal Bhutan Police. The proposed SOP is attached as Annex I.*	**In principle, the Commission endorsed the protocol. Besides, some of the specific comments of the Commission are as follows:** • **Tweak certain facts under the background;** • **Include 'distance' in addition to case in clause 'V' of General SOP for Escort;** • **Include a clause on the need to keep the Royal Bhutan Police Headquarter informed when transferring suspects from one jurisdiction to another;** • **Under the Escort in Escort Van rephrase clauses viii & ix into a single clause covering on how to handle suspects when the escort team doesn't reach on time and the need to do proper handing taking of suspects before escorting the suspects;** • **Change 'Admission of Suspect' to the 'Detention of Suspect'; and** • **Include meal register under the list of registers to be maintained at the detention center;** **Besides, the Commission directed to start implementing relevant SOPs (search and seizure) immediately.**

2	**Regular HR update – HRS** *The Asst. HRO apprised the Commission on the following decisions of the 100th HRC meeting:* • *Given that the existing Position Title vis-à-vis the staff's responsibility under the Department of Investigation is irrelevant, the DoI has proposed a change in the position title from Integrity Promotion Officer to Investigation Officer. To this, it was decided that all Departments and Divisions relook into the position title and propose it to the next HRC for deliberation so as to take up the proposal with the RCSC altogether.* • *Nomination of Mr. Kin Dorji, to attend the consultation on drafting of Construction Rules and Regulations and revision of Bhutan Building Regulations 2018.* • *Nomination of one official each from the LD and HRS for refining the draft National Policy on Prevention and Response to Sexual Violence coordinated by The PEMA Secretariat.* • *Nomination of officials for attending training on GPS Coordinates System.* • *Expression of Interest from one of the officials to pursue studies.* • *To submit feedback and comments on the Civil Service Reform to the RCSC by 30 June, 2023.* • *Notification from the GovTech pertaining to the need to share any HR information related to the ICT personnel.* • *Against Mr. Karma Phuntsho's request to transfer him back to the Head Office due to his health condition, the HRC decided to effect his transfer once Mr. Geyley Namgay resumes the*	**The Commission noted the decisions of the HRC.** **While the proposal to change the position title of the staff under Department of Investigation from Integrity Promotion Officer to Investigation Officer very much aligns with the responsibility, recalling the rationale behind the current position title to protect the staff by not making their position title obvious, the Commission directed to review the proposal by consulting the staff and to ensure that the staff are made aware of the change.** **Regarding the request of Mr. Karma Phuntsho, the Commission noting the genuine health condition of the individual directed the Department and HRS to closely discuss the matter with the individual and look into considering his case. To this, the Department of Investigation to explore possibility of sending one experienced staff if available from the PMC and if not from the SSC on temporary assignment.** **With regard to the performance management, the HRS to send an email to the RCSC highlighting on the ACC's concern regarding the plan to evaluate the Executives by the Coordinating Secretary of Cluster concerned, since details of the procedures and complexities of cases not only vary but are also confidential in nature and not shared. The situation poses CoI implications given the wide coverage and responsibilities of both proposed evaluator as well as Executives being evaluated.**

	office. *In addition, the Commission was sensitized on the new Performance Management System.*	
3	**Follow-up on meeting on clustering of the ICT services – Chairperson** *In view of the ongoing initiatives to cluster ICT services by the GovTech, the ACC has been informed that all existing systems of the agencies will be taken ownership by the GovTech. To discuss on this, a Commission meeting with the focal of the different systems in the ACC has been conducted on 30 May, 2023. Further, the Chairperson met with the Acting Secretary (AS) of the GovTech to discuss further on the initiatives of the GovTech and other pertinent issues related to the ICT. To this, the Chairperson shared some of the critical issues discussed during the meeting as follows:* • *Regarding the GovTech's plan to take ownership of the agencies' systems, the AS clarified that there is no plan to do it immediately. The plan will be rolled out gradually with careful assessment and when the GovTech is adequately prepared.* • *The Chairperson shared on the Commission's initiative related to the ICT and the support required from the GovTech. To this, taking note of the proliferating systems within the government agencies, the AS advised to limit the system development to those critical services and not always resort to developing systems.* • *AS shared on the need to seek consent from the individuals even for those personal information fetched automatically from other systems made possible through the API integration. This is to*	**Taking cues from the discussion with the AS, the Commission directed the following:** • **To limit to sharing basic information related to systems within the ACC which won't necessarily impinge the confidentiality and avoid sharing any credentials of the systems.** • **To cite the directives of the Commission as to not share information unless authorized, if any official from GovTech push for any specific information.** • **ADMD to note and follow-through on the need to make aware of the fact that the individual's information available in other databases are also used in the Asset Declaration System.** • **ICTS to explore immediately the possibility of instituting a two-tier authentication process for making any changes from the backend.**

	basically ensure that the individuals are made aware of the fact that their personal information available in other systems are also used for different purpose. • *AS also advised not to rely single-handedly on the single backend user and advised to institute a double-tiered/multi-tiered authentication process for any backend operations. This is in view of the fact that any data manipulation effected backend will remain oblivious unless there are such mechanism in place. For instance, if one of the ICT personnel wanted to make changes from the backend, there should be a mechanism wherein another ICT official or any other authorized individual is alerted on the action and only after two-tier authentication is completed, the individual can make the required changes.*	
4	**Present proposal on endowment fund – Committee** *The Committee presented the proposal on the endowment fund to the Commission for endorsement. (The presentation slides attached)*	**In principle, the Commission endorsed the proposal with the specific directions as follows:** • **To use simple interest method to calculate the interest;** • **To include the provision on the penalties;** • **Lay out conditions if in case individuals are not able to pay due to some unavoidable circumstances;** • **Include interest generated from the SWS as part of the endowment fund with status on it provided during every Quarterly Staff Meeting for transparency;** • **The disbursement of the amount to be done quarterly while the Emergency Loan can be disbursed any time as long as the fund is available. The 40% of take home pay requirement will also be an**

		exception for the Emergency Loan; • **Staff Welfare Committee to function as the Secretariat to oversee the disbursement and management of the Loan. In addition, a Welfare Loan Committee will be constituted with the following members for making decisions regarding the Welfare Loan;** **1. Wangay Dorji, Director, DoPS – Chairperson;** **2. Sonam Drukpa, CIPO, DoI – Member;** **3. Kelden Jamtsho, DCLO, LD – Member;** **4. Phuntsho Namgay, Sr. IPO, DARe - Member** **5. Pema Yangchen, IPO, DoPS – Member;** **6. Kinley Yangzom, AIPO, DoPE – Member;** **7. Kinzang Sherab, PA, SS – Member; and** **8. Chimi Wangdi, Driver, SS - Member**
5	**Present plan to enhance library and its management – PPD** *Based on the findings of the online survey administered to whole ACC staff to gather inputs for enhancing library facility, the PPD presented a proposal to improve the management of library including the enhancement of library facilities and resources. The draft plan is attached.*	**The Commission noted the plan of actions proposed with the following directives under specific areas:** **1. Library Space Improvement** • **Optimize the adjacent room for expanding the library space.** **2. Resource Acquisitions and expansion** • **Include collaboration with the Universities for acquiring e-journals;** • **To subscribe all newspaper including the Dzongkha paper by reducing the number of copies currently being subscribed and make it available to all staff by keeping it in the lobby and library;** • **While general reference books**

		such as dictionary and encyclopedia can be purchased, the acquisitioning of other books (fiction and non-fiction books) must be explored through dynamic borrowing and sharing with public library, institutes and government institutions. To this, librarian can establish connection with the public library, institutes and other agencies; and • **Set the target for acquiring books.** **3. Library management** • **Immediately explore the possibility of developing a simple system wherein the staff can view the available resources in the library. In addition, incorporate feature in the system for searching books by using keywords;** • **Since the system development will take time, the librarian to share credential of the ProCite as an interim measure as and when requested by the staff to view resources available;** • **Include attachment in addition to the training for the library personnel; and** • **PPD to assist the SS in materializing the idea of library enhancement.** **4. Engagement programs** • **Make library available for tutoring those individuals who are undergoing Continuous Educations and who wanted to appear Bhutan Civil Service Examination, Bar exams, etc. during off hours;** **Besides, towards making proposal practical,**

		the Commission directed to improve the proposal till end of June by also including the budget requirement.
6	**Update statistics on complaints, ATR, IV, IE and others – DoPS** *The DoPS presented the statistics true since July 2022 on complaints, Action Taken Report (ATR), Integrity Vetting and Information Enrichment. In addition, the ACRS apprised on the issue related to the data inconsistency in the total ATR received from the agencies vis-à-vis those shared by the Commission in view that the certain complaints have been shared with multiple agencies. In addition, the reconciliation of the data has been aggravated given the structural changes effected due to the Civil Service Reform Act of Bhutan 2022.* *Further, the Director, DoPS also presented the complaint dashboard maintained in the excel for easy tracking of information related to complaints such as total complaints received, TAT and decisions taken on complaints.*	**To this, some of the specific directives of the Commission are as follows:** • **For comparative purpose include the number of known and unknown complaints of two Annual Reports (Annual Report 2021-2022 and 2022-2023) in the Annual Report 2023-2024;** • **Record reasons for those IEs which are not assigned based on the Commission's directives and also to consider those IEs/ATRs which are assigned/shared in the month of June, 2023 during the evaluation of the performance so as to ensure that the performance of the Department is not affected;** • **Follow-up immediately with those agencies pertaining to those non-responsive/pending ATRs which has been shared before 2022 and to caution that the status on such pending ATRs will be reflected in the Annual Report 2022-2023;** • **In view of the slackened working relation with the NLCS and given the substantial number of pending ATRs, DoPS to arrange Commission meeting with the Secretary of the NLCS in the coming week;** • **While the Commission can correspond with those agencies with one or two pending ATRs, an in-person meeting between Commission and the Head of Agencies with many pending ATRs is deemed necessary. To this, the Commission directed DoPS to closely follow-up with those agencies in arranging the meeting as deemed necessary;** • **To generate category-wise data on the IVR; and** • **Use traffic light analogy in explaining categories of IVR for easy**

		understanding during advocacy programmes.
6	**Any other:** - **Apprise on Standard Operating Procedure for sharing of public information with the media – PPD** *The PPD apprised on the SOP for Sharing Public Information with the Media shared by the Ministry of Industry, Commerce and Employment with all the government agencies.* - **Seek direction on APA for the FY 2023-2024 – PPD** *The structure of the Annual Performance Agreement (APA) has undergone major changes during the FY 2022-2023. With the Government Performance Management System, managed by the erstwhile Government Performance Management Division not being able to accommodate structural changes in the APA, the APA 2022-2023 was submitted to the erstwhile GNHC in the form of soft copy. During the Budget Call Notification for the FY 2023-2024 from the Ministry of Finance vide MoF/DPBP-Budget Call/2023-24/563 dated January 31, 2023, there was no specific mention on the need to formulate APA for the FY 2023-2024 other than mentioning that the activities proposed must be tied to results and the Key Performance Indicators (KPI). In this regard, with just a month left for the FY 2023-2024 to commence, the PPD sought the Commission's directive on the formulation of APA 2023-2024.* - **Issues related to the misplacement of cheque related to handing taking of the rental income for JPLP building – DoPS** *The DoPS in February sent a letter to the Department of Procurement (DPP) and Properties regarding the handing taking of the rental income for JPLP building*	**The Commission noted that the provisions of the SOP doesn't contradict with that of the Model Public Service Code of Conduct. Moreover, it was noted that the SOP will complement the implementation of the Model Code.** **To this, the Commission directed to formulate the APA 2023-2024 using the existing format.** **The Commission noted the issue and directed the Department to ensure that the record is set straight i.e. the cheque has been misplaced and DPP requests a new cheque.**

	along with the cheque. During the follow-up, the DPP has communicated that they have not received the cheque. Accordingly, the Department recommended DPP to write a letter underscoring that the cheque has been misplaced and requesting to share a new cheque. Instead, the DPP has written to the Department indicating that they have not received the amount as indicated in the letter. *Besides, the Department also apprised on the incidences where the clients give varying account to the Department and the Commission.*	



Commissioner



Commissioner



Chairperson

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